

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: July 6, 2026 at 1:30 pm

Rulings Posted: 7/3/26

#	Case Name	Tentative
201	<i>Sierra vs. Della Vedova</i>	David L. Smart, Esq.’s (Moving Counsel) motion to be relieved as counsel of record for Plaintiffs Edward A. Sierra & Sabrina A. Sierra is CONTINUED to 8/17/26 to allow Moving Counsel to lodge form MC-053 with the court. Failure to lodge form MC-053 at least five court days before the next hearing will result in the Court DENYING Moving Counsel’s motion to be relieved as counsel without prejudice. On its own motion, the court continues the OSC from 7/6/26 to 8/17/26 st 1:30pm. Moving counsel shall give notice.

202	<i>Roos vs. Procolor Collision USA</i>	Defendant Procolor Collision USA LLC's motion for summary judgment as to the complaint filed by Plaintiff Sara Roos is DENIED. Defendant Procolor Collision USA LLC's motion for summary adjudication as to the complaint filed by Plaintiff Sara Roos is GRANTED for the 7th, 8th and 9th causes of action and the claim for punitive damages. The motion is DENIED as to the 1st, 2nd, 3rd, 4th, 5th, 6th, 10th and 11th causes of action. <u>Plaintiff's Objections To Format of Moving Papers:</u> The plaintiff correctly points out that the motion exceeds the page length allowed under Rule 3.1113(d). However, the Court will exercise its discretion and consider the entire motion. The Court will also consider the Separate Statement despite the minor noted differences with the notice of motion. <u>Plaintiff's Objections To Evidence:</u> Objection No. 1 is OVERRULED; Objection Nos. 11 and 12 are SUSTAINED (foundation, opinion); the Court DECLINES to rule on the remaining objections as not being material to the ruling on this motion. (Code Civ. Proc. §437c(q).) <u>1st Cause of Action: Sexual Harassment – Hostile Work Environment (Cal Gov. Code §§ 12940 et seq.):</u> Defendant fails to meet its burden on “severe or pervasive” and “appropriate corrective action.” Question of fact as to whether four incidents severe or pervasive. Question of fact as to whether investigation sufficient when excluding witness Carlson. (See Code Civ. Proc., § 437c, subd. (p)(2); <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 825, 851 [burden]; CACI No. 2521A [elements]; Govt. Code §§12940(j)(1), 12923) Motion is DENIED as to 1st cause of action.
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2nd Cause of Action: Discrimination Based on Sex/Gender (Cal Gov. Code §§ 12940 et seq.):

Defendant fails to meet its burden on lack of discriminatory motive or nondiscriminatory reason. There is a lack of foundation and support for Flynn’s statement that termination was due to “restructuring.” (Govt. Code §§12940; *Martin v. Bd. of Trs. of California State Univ.* (2023) 97 Cal. App. 5th 149, 161–62 [elements and burden].) Motion is DENIED as to 2nd cause of action.

3rd Cause of Action: Failure to Prevent Discrimination and Harassment (Cal Gov. Code §§ 12940 et seq.):

This cause of action is derivative of the first two causes of action. “[C]ourts have required a finding of actual discrimination or harassment under FEHA before a plaintiff may prevail under section 12940, subdivision (k).” (*Dickson v. Burke Williams, Inc.* (2015) 234 Cal.App.4th 1307, 1314) Since the first two causes of action have not been disposed of, this cause of action fails. Motion is DENIED as to 3rd cause of action.

4th Cause of Action: Retaliation in Violation of Public Policy (Cal Gov. Code §§ 12940 et seq.):

Defendant fails to meet burden of showing no causal link between plaintiff’s report of harassment and her termination. Disputed question of fact as to whether reporting harassment or “restructuring” was basis for termination. (CACI No. 4603 [elements].) Motion is DENIED as to 4th cause of action.

5th Cause of Action: Retaliation for Disclosure of Unlawful Acts (Cal Lab. Code §§ 1102.5):

Defendant fails to meet burden of showing no causal link between report of harassment and termination or that reporting was not a contributing factor to termination. (CACI No. 4603

[elements].) Motion is DENIED as to 5th cause of action.

6th Cause of Action: Wrongful Termination (Constructive Discharge) in Violation of Public Policy: Defendant fails to meet burden to show termination was not “motivating reason for plaintiff’s discharge.” (CACI No. 2430 [elements]) Motion is DENIED as to 6th cause of action.

7th Cause of Action: Intentional Infliction of Emotional Distress: Defendant met its initial burden on showing conduct not “extreme and outrageous” and no “severe emotional distress.” (CACI 1602 [elements].) Plaintiff failed to meet her shifted burden to “show that a triable issue of one or more material facts exists as to the cause of action.” (Code Civ. Proc. §437c(p)(2).) The motion is GRANTED as to the 7th cause of action.

8th Cause of Action: Negligent Infliction of Emotional Distress: Defendant argues no duty owed outside of FEHA claims, that defendant acted negligently and that plaintiff did not suffer serious emotional distress. In opposition, plaintiff does not address the challenge to the Negligent Infliction Of Emotional Distress cause of action. Instead, plaintiff only addresses the Negligent Supervision cause of action. Failing to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Sup. Ct.* (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”].) The motion is GRANTED as to the 8th cause of action.

9th Cause of Action: Unlawful and Unfair Business Practices (Cal. Bus. & Prof. Code § 17200 et seq.): In her opposition, plaintiff did not oppose the defendant’s challenge to the 9th cause of action. Failing to challenge a contention in a brief

		results in the concession of that argument. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566) The motion is GRANTED as to the 9th cause of action. <u>10th Cause of Action: Negligent Supervision AND 11th Cause of Action: Negligent Hiring and Retention:</u> Defendant failed to meet its burden to show one or more elements of the cause of action cannot be established. Question of fact as to sufficiency of investigation and response to complaint of harassment. No evidence showing preemployment fitness of Bridges. (CACI 426 [elements]; Code Civ. Proc. 437c(p)[burden]) The motion is DENIED as to the 10th cause of action. <u>Punitive Damages:</u> In plaintiff's opposition, she does not dispute defendant's challenge to punitive damages. Failing to challenge a contention in a brief results in the concession of that argument. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566) Further, Defendant met its burden to show Bridges not managing agent. (Civ. Code §3294; <i>Wilson v. Southern California Edison Co.</i> (2015) 234 Cal.App.4th 123, 164; Flynn Decl. ¶3) Plaintiff has not met her shifted burden. (Code Civ. Proc. 437c(p)(2).) The motion is GRANTED as to punitive damages. Plaintiff shall give notice.
204	<i>Lara vs. Wraith, LP</i>	The motion to vacate by Defendants Wraith LP and Wraith 21, LLC is GRANTED. The default entered on January 28, 2026 as to Wraith, LP (ROA 31) and the default entered on January 28, 2026 as to Wraith, LLC (ROA 30) are VACATED. (See Code Civ. Proc., § 473, subd. (b) ["The court may, upon any terms as may be just, relieve a party or his or her legal representative

		from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect”]; see also <i>Elston v. City of Turlock</i> (1985) 38 Cal.3d 227, 233 [requiring “very slight evidence” and resolving “all doubts ... in favor of the party seeking relief from default”]; see also <i>Ron Burns Constructions Co., Inc. v. Moore</i> (2010) 184 Cal.App.4th 1406, 1413 [“policy of the law is to have every litigated case tried upon its merits.”]) Defendants are ordered to file the answer attached as Exhibit B to the Declaration of E. Jennie Barkinskaya within 10 days. The CMC is continued from 7/6/26 to 9/8/26 at 8:45am in Dept. C24. Defendant shall give notice.
205	<i>Sotto vs. Rhyan</i>	The demurrer filed by defendant Stephen M. Rhyan, individually and as trustee of the Seymore and Joan Rhyan Family Trust (Rhyan) to the first amended complaint (FAC) of plaintiff Roberto Sotto (Plaintiff) is SUSTAINED IN PART with 20 days leave to amend and OVERRULED IN PART, as set forth below. Rhyan’s request for judicial notice of the FAC is GRANTED. (Evid. Code, § 452(d).) <u>Second Cause of Action for Wrongful Eviction</u> Plaintiff alleges he occupied the property located at 26832 Via La Mirada, San Juan Capistrano, CA 92675 (Subject Property) pursuant to an oral lease agreement with defendant Christine T. Trabucco (Trabucco). (FAC ¶ 34.) Plaintiff alleges after Trabucco’s master lease was terminated, the Seymore and Joan Rhyan Family Trust (Trust) assumed the lease. (<i>Ibid.</i>) Plaintiff alleges he

	performed all obligations under the lease agreement. (FAC ¶ 35.) The FAC adequately pleads a landlord-tenant relationship as to Rhyan, as trustee, based on the foregoing allegations. Rhyan argues these allegations are insufficient, but he cites no authority showing such allegations are inadequate to plead a landlord-tenant relationship. The FAC, however, fails to plead any facts showing a landlord-tenant relationship between Plaintiff and Rhyan, individually. As noted, the FAC specifically pleads the lease agreement was assumed by the Trust. No facts are pled showing Rhyan, individually, also assumed the lease agreement, such that Rhyan, individually, could be deemed a landlord of Plaintiff. In the Opposition, Plaintiff argues the claim is properly pled, citing to California Civil Code section 789.3, subdivision (b). However, by its own language, this statute applies to landlords. The demurrer to the second cause of action on this ground is SUSTAINED with 20 days leave to amend as to Rhyan, individually, and OVERRULED as to Rhyan, as trustee. Rhyan also argues the pleading is uncertain because Plaintiff admits in the FAC he does not know when exactly Trabucco’s master lease was terminated, leaving the basis for Plaintiff’s legal right to continued possession unclear. “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (<i>Khoury v. Maly's of Calif., Inc.</i> (1993) 14 Cal.App.4th 612, 616.) Here, the FAC pleads a basis for Plaintiff’s legal right to continued possession. The FAC alleges the Trust assumed the lease and Plaintiff performed all obligations under
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the lease. Any ambiguity as to when Trabucco's master lease was terminated can be clarified during discovery. The demurrer for uncertainty is not well-taken.

Third Cause of Action for Conversion and Fourth Cause of Action for Trespass to Chattels

"A cause of action for conversion requires allegations of plaintiff's ownership or right to possession of property; defendant's wrongful act toward or disposition of the property, interfering with plaintiff's possession; and damage to plaintiff." (*PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP* (2007) 150 Cal.App.4th 384, 395) A claim for trespass to chattels lies where an intentional interference with possession of personal property has proximately caused some injury to the chattel or to the plaintiff's right in it. (*Intel Corp. v. Hamidi* (2003) 30 Cal.4th 1342, 1350.)

The FAC sufficiently pleads wrongful acts toward or disposition of Plaintiff's property by Rhyon, individually and as trustee. (See FAC ¶¶ 37, 53-54.) These allegations also demonstrate intentional interference with Plaintiff's personal property. Moreover, contrary to Rhyon's argument, the FAC adequately pleads the nature of the personal property interfered with. (See FAC ¶ 49 and Ex. A.)

Rhyon also contends Plaintiff attributes the lock change and subsequent control over Plaintiff's personal property to "Defendants" collectively, which Rhyon argues is uncertain and insufficient. Rhyon cites authority concerning pleading requirements for fraud and conspiracy in which group pleading is disfavored. Plaintiff, however, does not allege a cause of action for fraud or conspiracy. These authorities are therefore

inapposite. The group pleading here does not render the pleading uncertain as the only two individuals alleged to be involved in the interference are Rhyan and Trabucco.

The demurrer to the third and fourth causes of action is **OVERRULED**.

Fifth Cause of Action for Negligence

The negligence claim and the duties alleged therein are based on the alleged landlord-tenant relationship with Plaintiff. (See FAC ¶ 67.) As discussed above, the FAC pleads a landlord-tenant relationship as to Rhyan, as trustee (see FAC ¶¶ 10, 34-35), but fails to plead any facts showing a landlord-tenant relationship as to Rhyan, individually.

The demurrer to the fifth cause of action is **SUSTAINED with 20 days leave to amend** as to Rhyan, individually, and **OVERRULED** as to Rhyan, as trustee.

Sixth Cause of Action for Intentional Infliction of Emotional Distress

To state a claim for intentional infliction of emotional distress, a plaintiff must allege: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-51.)

“A defendant's conduct is ‘outrageous’ when it is so ‘extreme as to exceed all bounds of that usually tolerated in a civilized community.’ And the

	defendant’s conduct must be ‘intended to inflict injury or engaged in with the realization that injury will result.’” (<i>Ibid.</i>) Rhyan is correct the allegations pertaining to this cause of action are conclusory and insufficient to show extreme and outrageous conduct by Rhyan, individually or as trustee, or severe emotional distress suffered by Plaintiff. The demurrer to the sixth cause of action is SUSTAINED with 20 days leave to amend. <u>Seventh Cause of Action for Unjust Enrichment</u> “The elements of unjust enrichment are the ‘receipt of a benefit and [the] unjust retention of the benefit at the expense of another.’ [Citation.]” (<i>Peterson v. Cellco Partnership</i> (2008) 164 Cal.App.4th 1583, 1593.) Rhyan contends there is no cause of action for unjust enrichment and the FAC alleges no benefit conferred on Rhyan. Regarding the first argument, there is a split in authority as to whether “unjust enrichment” is a separate cause of action. (Compare <i>Melchior v. New Line Productions, Inc.</i> (2003) 106 Cal.App.4th 779, 793; <i>McBride v. Boughton</i> (2004) 123 Cal.App.4th 379, 387; and <i>Castillo v. Toll Bros., Inc.</i> (2011) 197 Cal.App.4th 1172, 1209-1210 with <i>Ghirardo v. Antonioli</i> (1996) 14 Cal.4th 39, 43-44 and <i>Peterson v. Cellco Partnership</i> (2008) 164 Cal.App.4th 1583, 1593.) Due to this split in authority, the court finds this argument not well-taken. Regarding the second argument, the FAC sufficiently alleges a benefit conferred on Rhyan, individually and as trustee. (See FAC ¶¶ 37, 53-54, 78, 80-81.)
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		The demurrer to the seventh cause of action is OVERRULED. <u>Eighth Cause of Action for Unfair Business Practices</u> The UCL does not proscribe specific activities, but broadly prohibits “any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising.” (<i>Puentes v. Wells Fargo Home Mortg., Inc.</i> (2008) 160 Cal.App.4th 638, 643-44.) It governs anti-competitive business practices as well as injuries to consumers, and has as a major purpose the preservation of fair business competition. (Ibid.) “A plaintiff alleging unfair business practices under these statutes must state with reasonable particularity the facts supporting the statutory elements of the violation.” (<i>Khoury v. Maly's of California, Inc.</i> (1993) 14 Cal.App.4th 612, 619.) Rhyan is correct the FAC fails to adequately allege facts showing unlawful or unfair business practices by Rhyan, individually or as trustee. The allegations pertaining to Rhyan’s alleged unfair business practices are vague and conclusory. (See FAC ¶¶ 83, 85.) The demurrer to the eighth cause of action is SUSTAINED with 20 days leave to amend. In light of this ruling the court vacates the 7/6/26 OSC. Rhyan shall give notice.
206	<i>Negron vs. Negron</i>	The Demurrer filed on 1/22/26 by Defendant Amy Burchett Negron (Defendant), as to the Complaint filed on 10/3/25 by Plaintiff John Negron (Plaintiff) is SUSTAINED with 15 days leave to amend.

		This action appears to assert claims which Plaintiff needed to assert in a compulsory cross-complaint, under Code of Civil Procedure section 426.30. The Complaint asserts that Defendant was abusive to Plaintiff “throughout the marriage,” but as the Complaint asserts at ¶ 5 that they separated on 7/5/23, it appears that those claims could have been timely asserted in a cross-complaint. The Complaint also includes a slander claim which appears to be based primarily on allegations made by Defendant in her underlying suit - but the Complaint also asserts at ¶ 12 that Defendant “has told multiple individuals that JOHN gave her a sexually transmitted disease.” As the Opposition asserts that the latter is intended to refer to statements made after a cross-complaint could have been timely filed, the Demurrer on this basis is SUSTAINED with 15 days leave to amend. Defendant’s Request for Judicial Notice is GRANTED under Ev. Code §452(d) as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (<i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264.) The 7/6/26 CMC is continued to 9/8/26 at 8:45am in Dept. C24. Defendant shall give notice.
207	<i>Riemann vs. SH West Coast, LLC</i>	The court first notes that while this action was originally filed by plaintiffs Dave Riemann (Plaintiff) and Lisa Riemann (Lisa), the First Amended Complaint (FAC) does not refer to Lisa anywhere within, nor is it signed by Lisa. As such, it appears Lisa has abandoned her claims in this action. The FAC, which is the operative complaint, has a sole cause of action for quiet title. Despite Plaintiff

identifying by Chase Bank and PNC Bank as having interest in the subject property by way of senior deeds against the subject property, Plaintiff has not named either entity as a defendant. (FAC ¶¶ 4, 18.) All parties with an interest in property subject to a quiet title action must be named as defendants. (Code of Civil Procedure § 762.010; *Taliaferro v. Riddle* (1958) 166 Cal. App. 2d 124, 128.)

Plaintiff is to appear at the hearing to discuss the above issues.

Motion to Stay

Before the court is a motion to stay filed by Plaintiff against defendant SH West Coast, LLC (Defendant). The motion is **DENIED**.

Plaintiff requests the court stay an unlawful detainer (U/D) action in Orange County Superior Court Case No. 30-2026-01545969-CL-UD-CJC, which is in a different courtroom. The court first notes Plaintiff did not provide any identifying information regarding the U/D case. However, even if the case had been properly identified, that matter is not before this court and Plaintiff cited to no statute or case which permits this court to unilaterally stay an action in a different court. It also appears that judgment has been entered in the U/D case, which would in essence moot the motion and take jurisdiction away from this court even if it were in theory able to stay an action in a different court.

The motion to stay is denied.

Motion for Preliminary Injunction

Plaintiff filed motion for preliminary injunction, requesting the court enjoin Defendant from

pursuing any eviction, possession enforcement, or interference with the subject property. The motion is **DENIED**.

Defendant has already filed the U/D case against Plaintiff in the separate court. Pursuant to Code of Civil Procedure section 526, subdivision (b), the court cannot grant an injunction to stay another court. Also, on April 10, 2026, judgment in the U/D case was entered which adjudicated that Defendant had possession of the Property. “Whether an injunction restraining the sale of real property should be granted becomes a moot question on appeal where in the meantime the property has been sold.” (*Los Angeles Cnty. v. Butcher* (1957) 155 Cal. App. 2d 744, 746.) The court cannot retroactively enjoin Defendant from an action already taken.

Finally, to the extent Plaintiff requests the court prohibit Defendant from “interfer[ing] with the senior lender’s reinstatement process,” there are no arguments or facts Defendant is interfering with anything Chase and/or PNC are doing, that Plaintiff can represent the interests of non-party lienholders, that Plaintiff will prevail on the sole cause of action, or that Defendant does not have legal interest or ownership over the Property.

As Plaintiff has not shown the requested relief is something this court can issue or that Plaintiff is likely to prevail on the sole cause of action, the motion is denied.

Motion for Leave to Amend

Plaintiff’s motion for leave to file a second amended complaint (SAC) is **GRANTED**.

The motion is granted pursuant to Code of Civil Procedure section 473, subdivision (a)(1).

“Generally, leave to amend must be liberally granted [Citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” (*Solit v. Tokai Bank, Ltd. New York Branch* (1999) 68 Cal. App. 4th 1435, 1448.) The court finds no prejudice to Defendant regarding the filing of the SAC.

Plaintiff is ordered to file and serve the SAC attached to the motion within five days of the hearing. Defendant is ordered to file a responsive pleading pursuant to code.

Motion for Lis Pendens

Plaintiff’s motion for lis pendens is **DENIED**.

The requirements for requesting a list pendens are only that a real property claim is alleged, which would, if meritorious, affect title to, or the right to possession of, specific real property. (Code of Civil Procedure sections 405.4, 405.20, 405.21.) The moving party is also required to identify and notice all parties with an interest in the subject property. (*Schneider v. Bank of Am. N.A., No. 2:11-CV-2953 LKK DAD*, 2012 WL 761975, at *11 (E.D. Cal. Mar. 6, 2012).) The requirements identified by Defendant under Code of Civil Procedure sections 405.3 and 405.32 are only when a motion to expunge has been filed, not for the initial request.

Although an action for quiet title does permit a list pendens (Code of Civil Procedure section 761.01), Plaintiff has failed to state a cause of action for quiet title as Plaintiff has not tendered the debt that existed on the property at the time of the foreclosure sale, nor has Plaintiff offered to pay the debt. (*Miller and Starr* § 13:256. Requirement of tender, 5 Cal. Real Est. § 13:256 (4th ed.); *Lona v. Citibank, N.A.* (2011) 202 Cal. App. 4th 89, 104.)

As Plaintiff has not stated a cause of action and has not identified or notified all entities with an interest in the property regarding the motion, the motion is denied.

Motion to Consolidate

Plaintiff's motion to consolidate the present action with the U/D case is **DENIED**.

The court can only consolidate actions in limited circumstances. (California Rules of Court, Rule 3.300.) Notably, consolidation can only occur in matters that are pending. Judgment in the U/D case was entered on April 10, 2026, which results in a final determination of the merits. As judgment has been entered, the court would exceed its jurisdiction if it granted the motion as there are no questions of law or fact pending before the court in the U/D case. (*Sosnick v. Sosnick* (1999) 71 Cal. App. 4th 1335, 1339–40.)

The motion is denied.

Requests to Take Judicial Notice (RTJN) and Objections:

Plaintiff's RTJN:

Granted as to Exs. 1 and 3 (Evid. Code § 452(c)), and Ex. 5 (Evid. Code § 452(d)). Denied as to Exs. 2 as there is no basis for taking judicial notice of a mortgage statement, and Ex. 4 as the document does not appear to have any court filing stamp.

Defendant's RTJN:

Granted as to Exs. B – G (Evid. Code § 452(d)). Denied as to Ex. A as judicial notice of a filed declaration is unnecessary.

		Plaintiff's Objections on Leave to Amend: Overruled as to Nos. 1 – 8 as Plaintiff did not make proper objections. (See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶¶ 9:105.5.) The court continues the 7/6/26 CMC to 9/8/26 at 8:45am in Dept. C24. Defendant shall give notice.
208	<i>Assadkhan vs. Newport Bluffs LLC</i>	The Motion to Compel Arbitration, filed on 3/9/26 by Defendants Newport Bluffs LLC, The Irvine Company LLC, and Irvine Management Company (Defendants), is GRANTED. As a preliminary matter, the Opposition presented by Plaintiffs Kimya Assadkhan and Tahmineh Sharifnia (Plaintiffs) was extremely tardy. Plaintiffs have not shown circumstances justifying that delay. However, as Defendants were nonetheless able to present a substantive reply, the court will exercise its discretion and consider the Opposition . Defendants have shown that Plaintiffs entered into a lease with an “Addendum for Arbitration of Disputes and Class Action Waiver” (Addendum) which would encompass the claims presented here, and have provided a complete copy. (Kerzie Decl., Ex. 1.) The procedural requirements for the Motion under Code of Civil Procedure section 1281.2 and Rule 3.1330 of the California Rules of Court are thus adequately met. The Opposition does not dispute that this is so. Plaintiff instead argues that the Addendum is unconscionable. A delegation clause does not deprive the court of jurisdiction to address

		unconscionability claims. (See <i>Rent-A-Center, West, Inc. v. Jackson</i> (2010) 561 U.S. 63, 70-71.) But procedural and substantive unconscionability here are not adequately shown. Defendants have shown that the Federal Arbitration Act (“FAA”) applies here, which Plaintiffs do not dispute. The FAA preempts claims which would invalidate any arbitration provision in a rental lease. (<i>AT&T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333, 341.) The Addendum reasonably limits costs that Plaintiffs may incur to arbitrate. (Kerzie Decl., Ex. 1, ¶ 4.) Arguments as to the reasonableness of specific lease terms are issues to be addressed in the arbitration. The Motion is therefore GRANTED. This action is stayed pending completion of the arbitration. The court sets a status conference re: arbitration for 3/29/27 at 8:45am in Dept. C24. Defendants’ Request for Judicial Notice (ROA 40) is GRANTED as to Ex. A under Ev. Code §452(c), as to the existence of the record, but DENIED as to Ex. B. Defendants shall give notice.
209	<i>Sanders vs. California Department of Transportation</i>	Plaintiff Marvin Sanders’ motion to strike defendant Robert Betha’s demurrer is DENIED. While the demurrer was untimely filed, there is no evidence of bad faith or prejudice to Plaintiff. As such, the Court will exercise its discretion to consider the demurrer. (Code of Civ. Proc. § 436; <i>Jackson v. Doe</i> (2011) 192 Cal.App.4th 742, 750.) The court continues the CMC from 7/6/26 to 7/20/26 at 1:30pm. Defendant shall give notice.

210	<i>Venegas vs. Ford Motor Company</i>	Defendant Ford Motor Company's (Ford) motion for summary judgment or summary adjudication in the alternative is DENIED. The Court declines to rule on Ford's evidentiary objections. (Code of Civ. Proc. § 437c, subd. (q).) <u>1st cause of action (breach of express warranty):</u> Ford failed to meet its initial burden that Plaintiff cannot establish the elements of the breach of express warranty claim. (See Code Civ. Proc., § 437c, subd. (p)(2); <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 825, 851 [burden]; <i>Donlen v. Ford Motor Co.</i> (2013) 217 Cal.App.4th 138, 152 [elements].) Specifically, Ford's own evidence shows Plaintiff presented the vehicle for repair to Ford's authorized repair facility on at least six occasions. (See Defendant Ford's Separate Statement of Undisputed Material Facts (DSS) 10, 16-20; <i>Oregel v. American Isuzu Motors, Inc.</i> (2001) 90 Cal.App.4th 1094, 1103 [the mere presentation of the vehicle to Ford's authorized repair facility counts as opportunity to repair].) There is no evidence the issues for which the Plaintiff presented the vehicle fell outside the coverage of Ford's warranty. The fact that the repairs were not submitted for "warranty reimbursement" does not establish that the alleged defects fell outside the scope of Ford's warranty. While Ford contends the modifications of the subject vehicle by Tuscany voided Ford's warranty, including as to the engine and suspension, the evidence to which Ford cites is nonexistent. (See DSS 7 [website page no longer exists].) <u>2nd cause of action (implied warranty):</u> Ford failed to meet its initial burden the subject vehicle was "in safe condition and substantially free of defects." (See Code Civ. Proc., § 437c, subd. (p)(2); <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 825, 851 [burden]; <i>Isip v. Mercedes-Benz USA, LLC</i> (2007)
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155 Cal.App.4th 19, 24, 27 [fitness for the ordinary purpose of a vehicle means the vehicle is “in safe condition and substantially free of defects”].)

3rd cause of action (violation of Civ. Code § 1793, subd. (b)): Ford failed to meet its initial burden showing Ford’s authorized dealerships commenced repairs within a reasonable time after Plaintiff presented the vehicle for repairs. (See Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 825, 851 [burden]; Civ. Code § 1793.2, subd. (b).) As discussed above, Ford failed to produce sufficient evidence that the issues for which Plaintiff presented the vehicle to Ford’s authorized dealerships were not covered by Ford’s warranty.

Defendant Ted Jones Ford, Inc. dba Ken Grody Ford Buena Park’s (Ken Grody) motion for summary judgment is GRANTED.

Ken Grody’s request for judicial notice is GRANTED. (Evid. Code § 452, subd. (d).)

Ken Grody’s evidentiary objections to the declaration of Olga L. Ponce is OVERRULED as to nos. 1, 2, 6-11 and SUSTAINED as to nos. 3-5 based on lack of personal knowledge.

Ken Grody’s evidentiary objections to the declaration of Roque Venegas is OVERRULED as to nos. 1, 8-15 and SUSTAINED as to nos. 2-7, 16-22 based on relevance, lack of personal knowledge and/or improper expert opinion.

4th cause of action (negligent repair): Ken Grody met its initial burden Plaintiff cannot establish breach of the applicable standard of care. (See Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar v. Atlantic*

		<i>Richfield Co.</i> (2001) 25 Cal.4th 825, 851 [burden]; <i>Sabicer v. Ford Motor Company</i> (C.D. Cal. 2019) 362 F.Supp.3d 837, 840 [elements]; Defendant Ken Grody’s Separate Statement of Undisputed Material Facts (DSS) 12-14.) Plaintiff failed to meet his shifted burden to show a triable issue of fact. (See <i>Aguilar, supra</i>, 25 Cal.4th at p. 851 [burden]; Response to DSS 12-14; <i>Webster v. Claremont Yoga</i> (2018) 26 Cal.App.5th 284, 288-289 [the plaintiff’s failure to present expert testimony to contradict defense expert’s opinions entitles the defendant to summary judgment].) To the extent Plaintiff argues there are triable issues as to the “negligent diagnosis, inspection and release” of the subject vehicle, these facts are not alleged in the Complaint.” (See Compl. ¶¶ 70-72; <i>Nieto v. Blue Shield of Calif. Life & Health Ins. Co.</i> (2010) 181 Cal.App.4th 60, 74 [the pleadings determine the scope of relevant issues on a summary judgment motion].) Plaintiff’s request for a continuance is DENIED because the information sought is irrelevant to the issues raised by this motion and Plaintiff lacked diligence in discovering facts earlier. (Code of Civ. Proc. § 437c, subd. (h).) Defendant Ken Grody shall prepare a proposed judgment within 10 days and give notice.
211	<i>Aghawani vs. Vershinin Dental Corporation</i>	Before the Court is a Motion to Place Documents Under Seal filed by plaintiff Lamis Aghawani. The hearing is CONTINUED to August 17, 2026 at 1:30 p.m. in Dept. C24, as set forth herein. A party requesting a court record be filed under seal “must file a motion or an application for an order sealing the record.” (Cal. R. Ct. 2.551(b)(1).) “The motion or application must be

	accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” (<i>Id.</i>) The instant motion is brought pursuant to Code of Civil Procedure §367.3. Plaintiff states she is “an active participant in the Secretary of State’s confidential address program, Safe at Home.” (ROA 62.) She also states that her program identification number is 3763. (ROA 60.) On June 26, 2026, the plaintiff filed a “Notice of Lodging of Redacted Documents” (ROA 76.) and concurrently lodged copies of the documents with redactions. The Court has reviewed the proposed redactions. On all documents identified in ROA 76, except for ROA 21, the plaintiff has redacted her name, address, email and phone number. The Court finds the redactions of this plaintiff’s “identifying characteristics” (as defined in Code of Civil Procedure §367.3(a)(1)) appropriate to justify sealing the documents and that the redactions are sufficiently narrowly tailored. However, on ROA 21, the redaction of the defendant’s file number and settlement offer are not appropriate for sealing. Additionally, Code of Civil Procedure §367.3(c) requires that: “In an action filed under this section, the plaintiff shall state in the caption of the complaint ‘ACTION BASED ON CODE OF CIVIL PROCEDURE SECTION 367.3.’” The proposed redacted complaint does not contain this statement in the caption. Finally, plaintiff will need to submit a proposed order on Judicial Council Form SH-001 which lists her pseudonym (Jane Doe), her address to be contained in the public record, as well as a listing of the documents to be sealed as referenced in the Notice of Lodging at ROA 76.
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		Accordingly, the hearing on the motion is CONTINUED to August 17, 2026 at 1:30 p.m. in Dept. C24 to allow plaintiff to correct the deficiencies listed hereing. All further documents must be filed not less than 14 calendar days prior to the continued hearing date. Additionally, the hearing on the Order to Show Cause as to why the complaint should not be dismissed for failure to serve the defendant as required by Rule 3.110 is CONTINUED to August 17, 2026 at 1:30 p.m. in Dept. C24. Any evidence submitted in response to the OSC is required to be filed 14 calendar days prior to the hearing.
212	<i>Law Offices of Joseph P. McGinley vs. Falck Mobile Health, Inc.</i>	Before the court is an unopposed Motion Directing Interpleading of Funds (Motion) filed by plaintiff Law Offices of Joseph B. McGinley (Plaintiff). The Motion is GRANTED. Plaintiff was in possession of \$42,673.35 in settlement funds (Funds) related to the underlying motor vehicle accident matter; the Funds have now been deposited with the court. (Ferrell Decl. ¶ 8, Ex. A.) Plaintiff states there are conflicting demands on the Funds and Plaintiff has applied to the court for an order discharging it from liability and dismissing it from the action. (Code of Civil Procedure section 386.5.) Plaintiff stated by affidavit that it has no interest in the Funds. (Ferrell Decl. ¶ 7.) As the Funds have been deposited with the clerk of the court, the court will grant Plaintiff's request and discharge Plaintiff from liability regarding the Funds and dismiss Plaintiff from this action upon Plaintiff's filing of notice of this ruling. The court also grants Plaintiff's request for reasonable attorney fees in the amount of \$7,436.70, and directs the clerk to issue payment in that amount to Plaintiff out of the Funds. (Code of

		Civil Procedure section 386.6; <i>Hood v. Gonzales</i> (2019) 43 Cal.App.5th 57, 81-82.) Case management conference remains on calendar for 7/6/26. Plaintiff shall give notice.
213	<i>Rodriguez vs. Parker</i>	The Motion for Judgment on the Pleadings, filed on 2/20/26 by Plaintiff Steven Lee Rodriguez (Plaintiff), is DENIED. The Motion was not validly served on Defendant Connie Doris Parker (Parker). The proof of service reflects service by email alone, but the record does not reflect that Parker, an unrepresented party, consented to receive electronic service. (See Code of Civil Procedure section 1010.6(c)(2).) To the extent that this Motion seeks to strike the Answer as defective, a motion to strike would have been the proper means to do so. (See Code of Civil Procedure section 435.) But if treated as a motion to strike, this Motion is untimely. (Code of Civil Procedure section 435(b)(1).) Nor has Plaintiff shown here that relief is warranted under Code of Civil Procedure section 438(c)(1)(A) in any event. The Motion is therefore DENIED. Plaintiff's Request for Judicial Notice (ROA 76) is GRANTED as to the existence of the record presented as Ex. 1 under Ev. Code section 452(d). The Request is otherwise DENIED, as the relevance of those documents here is not shown. (Superior Court v. County of Mendocino (1996) 13 Cal.4th 45, 59, fn. 7.) The court continues the 7/6/26 CMC and OSC to 11/2/26 at 1:30pm in Dept. C24. Plaintiff shall give notice.

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